



SPONSOR: Rep. Spiegelman & Sen. Buckson
Reps. Michael Smith, Yearick; Sens. Hocker, Wilson

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 239

AN ACT PROPOSING AN AMENDMENT TO SECTION 9 OF ARTICLE II OF THE DELAWARE CONSTITUTION
RELATING TO LEGISLATIVE RULES OF PROCEEDINGS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE (Two-thirds of all members
elected to each house thereof concurring therein):

1 Section 1. Amend Section 9 of Article II of the Delaware Constitution by making deletions as shown by strike
2 through and insertions as shown by underline as follows:

3 **§ 9. Rules; punishment and expulsion of members; scope of powers.**

4 Section 9. Each House may determine the rules of its proceedings, provided, however, no rule or rules may be
5 suspended without the concurrence of three-fifths of all members elected to the particular house desiring to suspend a rule
6 or rules. Each House may punish any of its members for disorderly behavior, and with the concurrence of two-thirds of all
7 the members elected thereto expel a member, and shall have all other powers necessary for a branch of the Legislature of a
8 free and independent State.

SYNOPSIS

This is the First Leg Constitutional Amendment to require a three-fifths vote to suspend rules.